

Where notice void

(5) A notice given under subsection (1) becomes void with respect to a tenant who gave the notice, if the tenant does not vacate the rental unit on or before the termination date set out in the notice. 2016, c. 2, Sched. 6, s. 1.

Tenant vacating unit in accordance with notice

(6) A tenant who gave notice under subsection (1) and vacates the rental unit on or before the termination date set out in the notice ceases to be a tenant and a party to the tenancy agreement on the termination date, but this subsection does not affect any right or liability of the tenant arising from any breach of obligations that relates to the period before the termination. 2016, c. 2, Sched. 6, s. 1.

Not a notice of termination of tenancy

(7) For greater certainty, a notice under subsection (1) is not a notice of termination of the tenancy for the purposes of this Act, including without limiting the generality of the foregoing, for the purposes of subsections 37 (2) and (3), subsection 46 (1) and clause 77 (1) (b). 2016, c. 2, Sched. 6, s. 1.

Rent deposit

(8) Any rent deposit paid to the landlord or a former landlord in respect of the tenancy shall enure to the benefit of the tenant or tenants who did not give the notice under subsection (1) and any tenant in respect of whom the notice becomes void under subsection (5). 2016, c. 2, Sched. 6, s. 1.

Notice of termination of yearly tenancy or tenancy for fixed term

(9) Despite subsections 44 (3) and (4) and section 47, after a joint tenant has ceased to be a tenant and a party to the tenancy agreement in accordance with subsection (6), any tenant referred to in subsection (8) may terminate a yearly tenancy or a tenancy for a fixed term by giving notice of termination to the landlord in accordance with the following:

1. The notice shall be given at least 60 days before the date the termination is specified to be effective.
2. If there is more than one tenant, notice shall be given jointly by all of them.

3. The notice shall comply with subsection 43 (1). 2016, c. 2, Sched. 6, s. 1.

Application of s. 44 (5)

(10) Subsection 44 (5) applies with necessary modifications with respect to a notice given under subsection (9). 2016, c. 2, Sched. 6, s. 1.

▼ Section Amendments with date in force (d/m/y)

Tenant or child deemed to have experienced violence or another form of abuse

47.3 (1) For the purposes of sections 47.1 and 47.2, a tenant of a rental unit or a child residing with the tenant is deemed to have experienced violence or another form of abuse if,

(a) an order has been made under subsection 810 (3) of the *Criminal Code* (Canada) against a person mentioned in subsection (4) and the order includes one or more conditions described in subsection 810 (3.2) of that Act relating to the tenant, the child or the rental unit;

(b) an order has been made under section 46 of the *Family Law Act* against a person mentioned in subsection 46 (2) of that Act and the order includes one or more provisions described in subsection 46 (3) of that Act relating to the tenant, the child or the rental unit;

(c) an order has been made under section 35 of the *Children's Law Reform Act* against a person mentioned in subsection (4) and the order includes one or more provisions described in subsection 35 (2) of that Act relating to the tenant, the child or the rental unit;

(d) the tenant alleges that any of the following acts or omissions has been committed by a person mentioned in subsection (4) against the tenant or the child and the allegation is made in a statement that complies with the requirements in subsection (5):

(i) an intentional or reckless act or omission that caused bodily harm to the tenant or the child or damage to property,

(ii) an act or omission or threatened act or omission that caused the tenant

or the child to fear for his or her own safety or the child's safety,

(iii) forced confinement of the tenant or the child, without lawful authority, or

(iv) a series of acts which collectively caused the tenant or the child to fear for his or her own safety or the child's safety, including following, contacting, communicating with, observing or recording the tenant or the child;

(e) the tenant alleges that sexual violence has been committed against the tenant or the child and the allegation is made in a statement that complies with the requirements in subsection (5); or

(f) the tenant alleges that an act or omission prescribed for the purposes of this clause has been committed against the tenant or the child and the allegation is made in a statement that complies with the requirements in subsection (5).

2016, c. 2, Sched. 6, s. 1.

Definition

(2) In this section,

"sexual violence" means any sexual act or act targeting a person's sexuality, gender identity or gender expression, whether the act is physical or psychological in nature, that is committed, threatened or attempted against a person without the person's consent, and includes sexual assault, sexual harassment, stalking, indecent exposure, voyeurism and sexual exploitation. 2016, c. 2, Sched. 6, s. 1.

Non-application of subs. (1)

(3) Subsection (1) does not apply with respect to,

(a) an order described in clause (1) (b) that was made against the tenant; or

(b) sexual violence or an act or omission referred to in clause (1) (f) that is alleged to have been committed by the tenant. 2016, c. 2, Sched. 6, s. 1.

Persons against whom order or allegation made

(4) The person against whom an order described in clause (1) (a) or (c) was made and the person who is alleged to have committed an act or omission described in clause (1) (d) must be,

(a) a spouse or former spouse of the tenant;

(b) a person other than a spouse or former spouse of the tenant, who is living with the tenant in a conjugal relationship outside marriage, or who has lived with the tenant in a conjugal relationship outside marriage for any period of time, whether or not they are living in a conjugal relationship at the time the tenant gives a notice under subsection 47.1 (1) or 47.2 (1);

(c) a person who is or was in a dating relationship with the tenant; or

(d) a person who resides in the rental unit and who is related, including through marriage, to the tenant or to a child who resides with the tenant. 2016, c. 2, Sched. 6, s. 1; 2016, c. 23, s. 66.

Statement by tenant

(5) A statement referred to in clause (1) (d), (e) or (f) shall comply with the following requirements:

1. The statement shall be in a form approved by the Board.
2. The statement shall identify the rental unit to which it relates.
3. The statement shall include an allegation that one or more of the following has occurred:
 - i. an act or omission described in clause (1) (d) has been committed against the tenant or a child residing with the tenant by a person mentioned in subsection (4),
 - ii. sexual violence, as defined in subsection (2), has been committed against the tenant or a child residing with the tenant, or
 - iii. an act or omission prescribed for the purposes of clause (1) (f) has been committed against the tenant or a child residing with the tenant.
4. The statement need not,
 - i. describe the circumstances of the sexual violence or of the act or omission,
 - ii. specify whether the occurrence is an occurrence of an act or omission referred to in subparagraph 3 i or iii or an occurrence of sexual violence referred to in subparagraph 3 ii,
 - iii. identify the person who is alleged to have committed the sexual violence or the act or omission, either by name or by the person's relationship to the

tenant or the child residing with the tenant, or

iv. specify whether the sexual violence or the act or omission is alleged to have been committed against the tenant or a child residing with the tenant.

5. The statement shall include an assertion that, as a result of the sexual violence or the act or omission committed against the tenant or the child, the tenant believes that he or she or the child may be at risk of harm or injury, if he or she or the child continues to reside in the rental unit.

6. The statement shall be signed by the tenant. 2016, c. 2, Sched. 6, s. 1.

Board proceedings

(6) In any proceeding under this Act where one of the issues to be determined by the Board is whether a person is deemed under subsection (1) to have experienced violence or another form of abuse, the Board may inquire into and make a determination as to whether the documentation accompanying the notice is genuine and is a copy of an order described in clause (1) (a), (b) or (c) or is a statement referred to in clause (1) (d), (e) or (f), but the Board may not inquire into or make any determination as to the truth of or the belief in the truth of any allegation or assertion referred to in paragraph 3 or 5 of subsection (5). 2016, c. 2, Sched. 6, s. 1.

▼ Section Amendments with date in force (d/m/y)

Confidentiality

47.4 (1) A landlord to whom a notice is given under subsection 47.1 (1) or 47.2 (1) shall keep confidential and shall not, except as provided in subsections (2) to (5), disclose to any person or entity the fact that the notice has been given, the notice or accompanying documentation or any information included in the notice or accompanying documentation. 2016, c. 2, Sched. 6, s. 1.

Disclosure by landlord

(2) Subsection (1) does not prevent the landlord to whom a notice is given under subsection 47.1 (1) or 47.2 (1) from disclosing the fact that the notice has been given, the notice or accompanying documentation or any information included in the notice or accompanying documentation,

- (a) to an employee in the Ministry, an investigator appointed under section 229 or any other representative of the Ministry, in connection with the investigation or prosecution of an alleged offence under this Act;
- (b) to a law enforcement agency, but only upon request made by the law enforcement agency in connection with an investigation;
- (c) to a person who is authorized under the *Law Society Act* to practise law or provide legal services in Ontario and who provides services to the landlord;
- (d) to the Board, an employee in the Board or an official of the Board, for the purposes of any proceeding under this Act where one of the issues to be determined by the Board is whether notice was properly given under subsection 47.1 (1) or 47.2 (1);
- (e) with the consent of the tenant who gave the notice and who meets the requirement in clause 47.1 (1) (a) or (b) or 47.2 (1) (a) or (b);
- (f) to the extent that the information is available to the public; or
- (g) as otherwise required by law. 2016, c. 2, Sched. 6, s. 1.

Disclosure to remaining joint tenants

(3) Subsection (1) does not prevent the landlord to whom a notice is given with respect to a rental unit under subsection 47.2 (1) from disclosing the following information to any tenant referred to in subsection 47.2 (8) after the termination date specified in the notice and after the joint tenant or tenants have vacated the rental unit in accordance with the notice:

- (a) the fact that a notice was given under subsection 47.2 (1); and
- (b) the termination date specified in the notice. 2016, c. 2, Sched. 6, s. 1.

Advertising unit for rent

(4) Subsection (1) does not prevent the landlord to whom a notice is given with respect to a rental unit under subsection 47.1 (1) from advertising the rental unit for rent,

- (a) during the notice period, but only if the rental unit is not mentioned in the advertisement and cannot otherwise be identified from the advertisement;

(b) after the tenant or all the joint tenants, as applicable, have vacated the rental unit in accordance with the notice; or

(c) if the tenant or joint tenants, as applicable, do not vacate the rental unit in accordance with the notice, after the tenancy has otherwise been terminated.

2016, c. 2, Sched. 6, s. 1.

Disclosure to superintendent, property manager, etc.

(5) Subsection (1) does not prevent the landlord to whom a notice is given with respect to a rental unit under subsection 47.1 (1) or 47.2 (1) from disclosing the fact that the notice has been given, the notice or accompanying documentation or any information included in the notice or accompanying documentation to a superintendent, property manager or any other person who acts on behalf of the landlord with respect to the rental unit, if the person needs to know that fact or requires the notice or accompanying documentation or the information for the purposes of performing the person's duties on behalf of the landlord with respect to the rental unit. 2016, c. 2, Sched. 6, s. 1.

Confidentiality, superintendent, property manager, etc.

(6) Subsections (1) to (4) apply with necessary modifications to a person to whom a landlord discloses, as provided in subsection (5), the fact that notice has been given with respect to a rental unit under subsection 47.1 (1) or 47.2 (1), the notice or accompanying documentation or any information included in the notice or accompanying documentation. 2016, c. 2, Sched. 6, s. 1.

▼ Section Amendments with date in force (d/m/y)

NOTICE BY LANDLORD AT END OF PERIOD OR TERM

Notice, landlord personally, etc., requires unit

48 (1) A landlord may, by notice, terminate a tenancy if the landlord in good faith requires possession of the rental unit for the purpose of residential occupation for a period of at least one year by,

(a) the landlord;

(b) the landlord's spouse;

- (c) a child or parent of the landlord or the landlord's spouse; or
- (d) a person who provides or will provide care services to the landlord, the landlord's spouse, or a child or parent of the landlord or the landlord's spouse, if the person receiving the care services resides or will reside in the building, related group of buildings, mobile home park or land lease community in which the rental unit is located. 2006, c. 17, s. 48 (1); 2017, c. 13, s. 7 (1); 2021, c. 4, Sched. 11, s. 31 (1).

Same

(2) The date for termination specified in the notice shall be at least 60 days after the notice is given and shall be the day a period of the tenancy ends or, where the tenancy is for a fixed term, the end of the term. 2006, c. 17, s. 48 (2).

Earlier termination by tenant

(3) A tenant who receives notice of termination under subsection (1) may, at any time before the date specified in the notice, terminate the tenancy, effective on a specified date earlier than the date set out in the landlord's notice. 2006, c. 17, s. 48 (3).

Same

(4) The date for termination specified in the tenant's notice shall be at least 10 days after the date the tenant's notice is given. 2006, c. 17, s. 48 (4).

Application

(5) This section does not authorize a landlord to give a notice of termination of a tenancy with respect to a rental unit unless,

- (a) the rental unit is owned in whole or in part by an individual; and
- (b) the landlord is an individual. 2017, c. 13, s. 7 (2).

▼ Section Amendments with date in force (d/m/y)

Compensation, notice under s. 48

48.1 A landlord shall compensate a tenant in an amount equal to one month's rent or offer the tenant another rental unit acceptable to the tenant if the landlord gives the

tenant a notice of termination of the tenancy under section 48. 2017, c. 13, s. 8.

Note: On a day to be named by order of the Lieutenant Governor in Council, section 48.1 of the Act is amended by adding “Subject to subsection (2)” at the beginning. (See: 2025, c. 14, Sched. 12, s. 2 (1))

Note: On a day to be named by order of the Lieutenant Governor in Council, Section 48.1 of the Act is amended by adding the following subsection: (See: 2025, c. 14, Sched. 12, s. 2 (2))

Same

(2) The requirement to compensate a tenant or to offer the tenant another rental unit under subsection (1) does not apply if a landlord gives notice to a tenant under section 48 that meets the following criteria:

1. The notice is given on or after the day subsection 2 (2) of Schedule 12 to the *Fighting Delays, Building Faster Act, 2025* comes into force.
 2. The date for termination specified in the notice is at least 120 days after the notice is given.
 3. The date for termination specified in the notice is the day a period of the tenancy ends or, where the tenancy is for a fixed term, the end of the term.
- 2025, c. 14, Sched. 12, s. 2 (2).

▼ Section Amendments with date in force (d/m/y)

Notice, purchaser personally requires unit

49 (1) A landlord of a residential complex that contains no more than three residential units who has entered into an agreement of purchase and sale of the residential complex may, on behalf of the purchaser, give the tenant of a unit in the residential complex a notice terminating the tenancy, if the purchaser in good faith requires possession of the residential complex or the unit for the purpose of residential occupation by,

- (a) the purchaser;
- (b) the purchaser’s spouse;
- (c) a child or parent of the purchaser or the purchaser’s spouse; or

(d) a person who provides or will provide care services to the purchaser, the purchaser's spouse, or a child or parent of the purchaser or the purchaser's spouse, if the person receiving the care services resides or will reside in the building, related group of buildings, mobile home park or land lease community in which the rental unit is located. 2006, c. 17, s. 49 (1); 2021, c. 4, Sched. 11, s. 31 (1).

Same, condominium

(2) If a landlord who is an owner as defined in clause (a) or (b) of the definition of "owner" in subsection 1 (1) of the *Condominium Act, 1998* owns a unit, as defined in subsection 1 (1) of that Act, that is a rental unit and has entered into an agreement of purchase and sale of the unit, the landlord may, on behalf of the purchaser, give the tenant of the unit a notice terminating the tenancy, if the purchaser in good faith requires possession of the unit for the purpose of residential occupation by,

(a) the purchaser;

(b) the purchaser's spouse;

(c) a child or parent of the purchaser or the purchaser's spouse; or

(d) a person who provides or will provide care services to the purchaser, the purchaser's spouse, or a child or parent of the purchaser or the purchaser's spouse, if the person receiving the care services resides or will reside in the building, related group of buildings, mobile home park or land lease community in which the rental unit is located. 2006, c. 17, s. 49 (2); 2021, c. 4, Sched. 11, s. 31 (1).

Period of notice

(3) The date for termination specified in a notice given under subsection (1) or (2) shall be at least 60 days after the notice is given and shall be the day a period of the tenancy ends or, where the tenancy is for a fixed term, the end of the term. 2006, c. 17, s. 49 (3).

Earlier termination by tenant

(4) A tenant who receives notice of termination under subsection (1) or (2) may, at any time before the date specified in the notice, terminate the tenancy, effective on a